

UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON,
Plaintiff,

vs.

Case No.: 3:25cv1447/MCR/ZCB

AMENTUM GOVERNMENT
SERVICES PARENT
HOLDINGS LLC, et al.,
Defendants.

_____ /

ORDER

Defendants have filed a motion to dismiss. (Doc. 33). Plaintiff will be afforded an opportunity to respond to Defendants' motion to dismiss before the Court issues a ruling.

If Plaintiff opposes Defendants' motion to dismiss, she must file a response in opposition. N.D. Fla. Loc. R. 7.1(E) ("A party who opposes the motion must file a memorandum in opposition."). Failure to respond in opposition to Defendants' motion will cause this Court to presume that Plaintiff does not oppose the motion and agrees that her claims against Defendants should be dismissed. *See* N.D. Fla. Loc. R. 7.1(H) ("The Court may grant a motion by default if an opposing party does not file a memorandum as required by this rule."); *see also Stubbs v. CitiMortgage*,

Inc., 549 F. App'x 885, 887 (11th Cir. 2013) (finding that the district court correctly treated defendant's motion to dismiss as unopposed where plaintiff failed to file a response in opposition).

Defendants may have raised the argument that all or part of Plaintiff's case should be dismissed because she failed to exhaust administrative remedies. If Plaintiff is found to have not exhausted a claim, that claim will be dismissed. Plaintiff has the right to develop the record regarding the issue of exhaustion and may submit to the Court any evidence relevant to the question of whether or not she exhausted. *See Bryant v. Rich*, 530 F.3d 1368, 1376 n.14 (11th Cir. 2008) (noting that if "the district court looks beyond the pleadings to a factual record in deciding the motion to dismiss for failure to exhaust . . . then the court must assure that the plaintiff has fair notice of his opportunity to develop a record") (cleaned up).¹

¹ *See also Tillery v. U.S. Dep't of Homeland Sec.*, 402 F. App'x 421, 424-25 (11th Cir. 2010) (discussing exhaustion in employment discrimination actions) ("We reject Tillery's argument that *Bryant* is applicable only to motions to dismiss under the Prison Litigation Reform Act's ('PLRA') exhaustion requirement Although the source of the exhaustion requirement in *Bryant* was the PLRA, *Bryant* relied upon general principles that: (1) a matter in abatement, even if non-jurisdictional, such as exhaustion of administrative remedies is appropriately raised in a Rule 12(b) motion to dismiss, and (2) a district court can resolve a factual

If, after Plaintiff reviews the motion, Plaintiff agrees that heris claims against Defendants should be dismissed, then she shall **file a notice of voluntary dismissal** under Fed. R. Civ. P. 41(a)(1)(A)(i).

Accordingly, it is **ORDERED**:

1. If Plaintiff opposes Defendants' motion to dismiss (Doc. 33), she must file a response in opposition on or before **January 20, 2026**. A response must comply with the Federal Rules of Civil Procedure and the Court's Local Rules.

2. Plaintiff's failure to file a response in opposition to the motion to dismiss will cause this Court to presume that Plaintiff does not oppose the motion.

SO ORDERED this 30th day of December 2025.

/s/ Zachary C. Bolitho

Zachary C. Bolitho

United States Magistrate Judge

dispute in ruling on that Rule 12(b) motion to dismiss so long as it does not adjudicate the merits of the claim and the plaintiff has had an opportunity to develop the record.") (cleaned up).